



CHAPTER xcvi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Renfrew Burgh.

A.D. 1932.

[17th November 1932.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by one of His Majesty's Principal Secretaries of State under the provisions of the Private Legislation Procedure (Scotland) Act 1899 as read with the Secretaries of State Act 1926 and it is requisite that the said Order should be confirmed by Parliament:

62 & 63

Vict. c. 47.

16 & 17

Geo. 5. c. 18.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Renfrew Burgh Order Confirmation Act 1932.

Short title.

A.D. 1932.

SCHEDULE.

RENFREW BURGH.

Provisional Order to authorise the provost magistrates and councillors of the royal burgh of Renfrew to acquire lands for road improvements and to borrow money therefor and for other purposes.

WHEREAS the provost magistrates and councillors of the royal burgh of Renfrew (hereinafter referred to as "the Town Council" and "the burgh" respectively) are the local authority and (except with respect to first and second class roads) the road authority within the burgh and are charged with the management and administration thereof:

And whereas the road known as Oxford Road which is neither a first nor a second class road is situated within the burgh and consists of two separate portions namely a western portion and an eastern portion and such portions are separated by a wall (hereinafter referred to as "the Oxford Road Wall"):

And whereas the said western portion of Oxford Road was originally laid out as a private road or street for the purpose of affording access to the houses erected or to be erected fronting or abutting thereon and was terminated at its eastern end by a hedge planted on the strip of ground now occupied by the Oxford Road Wall and formed at its western end a junction with the road known as Paisley Road which is the main route between Renfrew and Paisley:

And whereas in or about the year one thousand nine hundred and twenty-nine the feuars in the said western portion of Oxford Road were called upon by the Town Council to put the said western portion in order in pursuance of the Burgh Police (Scotland) Acts 1892 to 1903 and the said western portion having thereafter been put in order to the satisfaction of the Town Council was taken over as a public street by the Town Council in terms of the said Acts on the sixteenth day of November one thousand nine hundred and thirty-one:

And whereas in or about the year one thousand nine hundred and twenty-one the Town Council constructed in connection with their Loanhead Housing Scheme the said eastern portion of Oxford Road extending eastward from the Oxford Road Wall in continuation of the line of the said western portion of Oxford Road and forming at its eastern end a junction with the road known as Sandy Road which said eastern portion of Oxford Road is a public street : A.D. 1932.

And whereas in or about the same year the Oxford Road Wall was erected on the said strip of ground formerly occupied by the said hedge by or at the instance of the feuars (or certain of them) of the plots of ground fronting or abutting upon the said western portion of Oxford Road and such wall prevents through communication along the whole length of Oxford Road :

And whereas the existence of the Oxford Road Wall causes great inconvenience to pedestrians and to vehicular traffic and hardship in particular to the workpeople and school children residing in the houses comprising the said Loanhead Housing Scheme and others desirous of reaching the said Paisley Road or places in its vicinity lying to the west of the Oxford Road Wall :

And whereas the existence of the Oxford Road Wall also causes inconvenience in carrying on the public services within the burgh such as police lighting and cleansing :

And whereas it is expedient and in the public interest that the Oxford Road Wall should be removed and that for this purpose the Town Council should be authorised to acquire the Oxford Road Wall and the strip of ground on which it stands and to demolish the said wall for the purpose of uniting into one continuous street the said western and eastern portions of Oxford Road :

And whereas it is expedient that the Town Council should be authorised to borrow money for the purposes aforesaid :

And whereas a plan showing the lands required or which may be taken for the purposes or under the powers of this Order and a book of reference to such plan containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands have been duly deposited with the sheriff

[Ch. xcvi.] *Renfrew Burgh Order*. [22 & 23 GEO. 5.]
Confirmation Act, 1932.

A.D. 1932. clerk of the county of Renfrew and with the town
— clerk of the burgh and are in this Order referred to as
the deposited plan and book of reference :

And whereas the purposes aforesaid cannot be
effected without an Order confirmed by Parliament
under the provisions of the Private Legislation
Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained
in the last-mentioned Act as read with the Secretaries
of State Act 1926 the Secretary of State orders as
follows:—

Short title. 1. This Order may be cited as the Renfrew Burgh
Order 1932.

Interpreta- 2. The following words and expressions in this
tion. Order shall have the meanings hereby assigned to them
(that is to say):—

“Burgh” means the royal burgh of Renfrew ;

“Existing” means existing at the date of the passing
of the Act confirming this Order ;

“The Lands Clauses Acts” means the Lands
Clauses Acts as modified by the Acquisition
of Land (Assessment of Compensation) Act
1919 as such last-mentioned Act is amended
by the Acquisition of Land (Assessment of
Compensation) (Scotland) Act 1931 ;

“The Oxford Road Wall” means the existing wall
separating the existing western and eastern
portions of the public road or street known as
Oxford Road in the burgh ;

“Town Council” means the provost magistrates
and councillors of the burgh ;

“The tribunal” means the arbiter or other authority
to whom any question of disputed purchase
money or compensation under this Order is
referred.

Incorpora-
tion of
Acts.

3. The Lands Clauses Acts so far as they are applic-
able for the purposes of and are not inconsistent with or
varied by this Order are hereby incorporated with and
form part of this Order and this Order shall be deemed
to be a special Act within the meaning of those Acts.

4. Subject to the provisions of this Order the Town Council may for the purpose of uniting into one continuous street the existing western and eastern portions of the public road or street known as Oxford Road enter upon take and use all or any of the lands delineated on the deposited plan and described in the deposited book of reference and may demolish the Oxford Road Wall and exercise all or any of the powers vested in them as road authority for the burgh in relation to the whole or any part of the said lands.

A.D. 1932.

Power to acquire lands for purpose of uniting western and eastern portions of Oxford Road.

5. At any time after notice to treat has been served for any land which the Town Council are by this Order authorised to purchase compulsorily the Town Council may after giving to the owner and occupier of the land not less than fourteen days' notice enter on and take possession of the land or such part thereof as is specified in the notice without previous consent or compliance with sections 83 to 88 of the Lands Clauses Consolidation (Scotland) Act 1845 but subject to the payment of the like compensation for the land of which possession is taken and interest on the compensation awarded as would have been payable if those provisions had been complied with.

Power of entry.

6. The power of the Town Council for the compulsory purchase of lands under this Order shall cease on the first day of January one thousand nine hundred and thirty-five.

Period for compulsory purchase.

7. Whereas in the exercise of the powers of this Order it may happen that portions only of certain properties shown or partly shown on the deposited plan will be sufficient for the purposes of this Order or any of them and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may be required to sell parts only of certain properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Order and whereof a portion only is required for the purposes of this Order or each or any of them are hereinafter in this section included in the term "the owner" and the said properties

[Ch. xcvi.] *Renfrew Burgh Order* [22 & 23 GEO. 5.]
Confirmation Act, 1932.

A.D. 1932.

are hereinafter in this section referred to as
“ the scheduled property ” :

- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of the scheduled property the owner shall fail to notify in writing to the Town Council that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Town Council such portion only without the Town Council being obliged or compellable to purchase the whole the Town Council paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Town Council allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Town Council have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Town Council the portion which the tribunal shall have determined to be so severable without the Town Council being obliged or compellable to purchase the whole the Town Council paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that any costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner. A.D. 1932.
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not the tribunal shall determine that any other portion can be so severed) the Town Council may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Town Council in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and its final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation (Scotland) Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled property or any part thereof is or is not or but for this section would be or would not be subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

[Ch. xcvi.] *Renfrew Burgh Order* [22 & 23 GEO. 5.]
Confirmation Act, 1932.

A.D. 1932.

The provisions of this section shall be stated in every notice to treat given in respect of a specified portion of the scheduled property.

Compensation in case of recently altered buildings.

8. In settling any question of disputed purchase money or compensation payable under this Order by the Town Council the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the first day of February one thousand nine hundred and thirty-two if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Order.

Correction of errors in deposited plan and book of reference.

9. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Town Council after giving ten days' notice to the owners lessees and occupiers affected by such proposed correction may apply to the sheriff of Renfrew and Bute for the correction thereof and if it appears to the said sheriff that such omission misstatement or wrong description arose from accident or mistake he shall certify the same accordingly and shall in his certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the sheriff clerk of the county of Renfrew and a duplicate thereof with the town clerk of the burgh and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plan and book of reference shall be deemed to be corrected according to such certificate and the Town Council may take the lands in accordance with such certificate.

Borrowing powers.

10. For the purposes of (a) raising any money payable as purchase money or compensation under this Order and (b) paying the costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto the Town Council may borrow such sums as they may think fit not exceeding the amounts necessary for the said purposes respectively in the same way and manner as

money borrowed by them for the construction of new streets or roads or bridges under the Roads and Bridges (Scotland) Act 1878 and the provisions of that Act relating to the borrowing of such money and the repayment thereof shall extend and apply to the money borrowed by the Town Council under this section provided that any money borrowed for the purpose of paying the costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be repaid within five years from the date of the passing of the Act confirming this Order. A.D. 1932.

11. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Town Council. Costs of Order.

SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Owners may be required to sell parts only of certain properties.")

Burgh.	County.	Numbers on deposited plan.
Renfrew - - -	Renfrew - - -	1 and 2.

Printed by EYRE and SPOTTISWOODE LIMITED,
FOR
WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
Adastral House, Kingsway, London, W.C.2; 120, George Street, Edinburgh 2;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
15, Donegall Square West, Belfast;
or through any Bookseller.

